

**CHAPTER ccxxxi.**

An Act to confer further powers upon the South
Staffordshire Tramways (Lessee) Company Limited
for the working of tramways by electrical power and
for other purposes. [14th August 1903.]

A.D. 1903.

WHEREAS under and by virtue of an indenture of lease dated the twenty-fifth day of April one thousand nine hundred which is set forth in the Second Schedule to the South Staffordshire Tramways Act 1900 (in this Act referred to as "the Act of 1900") and was confirmed by the said Act certain tramways therein mentioned (in this Act called "the tramways") were demised to the South Staffordshire Tramways (Lessee) Company Limited (in this Act called "the Company") :

And whereas by the Act of 1900 the Company were authorised with the consent of the local and road authorities to make such alterations of the tramways and to execute all such works on or in connection therewith and in over or under the streets or roads in which the same were laid as might be necessary or expedient for adapting the same to be worked by electrical power :

And whereas it is expedient that the local authorities in whose districts the tramways are situate should be empowered to make agreements varying the dates at which and the terms on which they may purchase the portions of the tramways in their districts and to grant leases of such tramways for periods in excess of that prescribed by the Tramways Act 1870 :

And whereas it is expedient that provision should be made as contained in this Act for the grant by the mayor aldermen and burgesses of the said borough of Wednesbury (in this Act called "the Wednesbury Corporation") of a lease to the Company of the portions of the tramways in the said borough :

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And whereas it is expedient that the date at which the councils of the urban districts of Tipton and Coseley (in this Act respectively called "the Tipton Council" and "the Coseley Council") may purchase the portions of the tramways in those districts should be postponed:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title.

1. This Act may be cited as the South Staffordshire Tramways Act 1903.

Interpretation.

2. In this Act unless there be something in the subject or context repugnant to such construction—

The expression "mechanical power" includes steam electric and every other motive power not being animal power;

The expression "engine" includes motor.

Power to make additional cross-overs and to double tramway lines.

3.—(1) The Company may subject to the provisions of this Act with the consent of the Board of Trade make maintain alter and remove such cross-overs passing-places sidings junctions and other works as they find necessary or convenient for the efficient working of the tramways or for providing access to any generating stations warehouses stables or carriage houses or works of the Company.

(2) The Company may with the consent of the Board of Trade lay down double lines in lieu of single lines or single lines in lieu of double lines or interlacing lines in lieu of double or single lines on any of the tramways and if at any time the road in which any of the tramways or part thereof is laid has been or shall be altered or widened the Company may with the like consent take up or reconstruct the same in such position as they may think fit.

(3) Provided that if in the construction of any works under this section any rail is intended to be so laid that for a distance of thirty feet or upwards a less space than nine feet six inches would intervene between it and the outside of the footpath on either side of the road the Company shall not less than one month before commencing the works give notice in writing to every owner and occupier of premises abutting on the place where such less space

would intervene and such rail shall not be so laid if the owners or occupiers of one-third of such premises by writing under their hands addressed and delivered to the Company within three weeks after receiving the notice from the Company express their objection thereto.

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4. Where by reason of the execution of any work affecting the surface and soil of any road or street along which any of the tramways is laid it is in the opinion of the road authority necessary or expedient temporarily to remove or discontinue the use of such tramway or any part thereof the Company may with the consent in writing of the road authority and subject to such conditions and in accordance in all respects with such regulations as the road authority may make construct in the same or any adjacent road and subject to the like conditions and in accordance with the like regulations maintain so long as occasion may require a temporary tramway or temporary tramways in lieu of the tramway or part of a tramway so removed or discontinued.

Temporary tramways to be made where necessary.

If any difference arise between the Company and any road authority with respect to the reasonableness of any such conditions or regulations or with respect to the mode of constructing any temporary tramway or temporary tramways under the authority of this section the same shall be settled in the manner specified in section 33 of the Tramways Act 1870 for the settlement of the differences in that section mentioned.

5. Any double or interlacing lines or other works laid down or executed by the Company under the provisions of the sections of this Act the marginal notes whereof are "Power to make additional cross-overs and to double tramway lines" and "Temporary tramways to be made where necessary" on any of the tramways for the time being subject to the lease set forth in the Second Schedule to the Act of 1900 shall for the purposes of such lease be deemed to form part of the demised tramways but nothing in this Act or in the said lease shall authorise the Company to charge the South Staffordshire Tramways Company with the costs of laying down such double or interlacing lines or the execution of such works.

For protection of South Staffordshire Tramways Company.

6. Subject to the provisions of this Act the Company may during the execution of the works with the consent in writing of the road authority in whose district any road street or bridge shall be situated stop up temporarily the carriage-way or footway of any

Stoppage of roads during execution of works.

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Application
of road ma-
terials exca-
vated in con-
struction of
works.

7. Any paving metalling or material not being the property of the South Staffordshire Tramways Company excavated by the Company in the exercise of the powers of this Act from any road or street under the jurisdiction or control of any road authority may be applied by the Company so far as may be necessary in or towards the reinstating of the road or street and the maintenance for six months after completion of any of the tramways within the district of such road authority of so much of the roadway on either side of such tramways as the Company are by section 28 of the Tramways Act 1870 required to maintain and the Company shall if so required deliver the surplus paving metalling or material not used or required to be retained for the purposes aforesaid to the surveyor of the road authority or to such person or persons as he may appoint to receive the same. Provided that if within seven days after the setting aside of the surplus arising from the excavation of any such paving metalling or material and notice duly given such surplus is not removed by such surveyor or by some other person named by him for that purpose such surplus paving metalling or material shall absolutely vest in and belong to the Company and may be dealt with removed and disposed of by them in such manner as they may think fit. Any difference between the Company and any road authority or surveyor or other person with reference to any of the matters aforesaid shall be settled by a referee to be nominated by the Board of Trade on the application of either party.

Overhang of
tramway
cars.

8. From and after the passing of this Act so much of section 34 of the Tramways Act 1870 and of the several Orders and Act which are mentioned in the Schedule to the South Staffordshire Tramways Act 1899 as prescribes the limits to which the carriages used on tramways may extend on each side beyond the outer edge of the wheels of such carriages or the width of such carriages shall not apply to engines or carriages used on the tramways or any of them or on any tramways run over used or worked by the Company and notwithstanding anything contained in those sections the engines and carriages used on such tramways or any of them may be of such widths as the Company may think fit not exceeding six feet six inches.

For pro-
tection of
owners of

9. For the protection of the owner lessee and occupier of any colliery or iron or steel works abutting upon or in the neighbourhood

of the roads in which the tramways are constructed (in this section called "the owner") the following provisions shall except so far as it may be otherwise agreed between the Company and the owner have effect (that is to say):—

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collieries
and iron and
steel works.

- (1) In maintaining and working the tramways the Company shall not interfere with any existing railways or tramways of the owner which are crossed by the tramways of the Company (which existing railways or tramways are in this section called "the railway") except so far as may be reasonably necessary for the purposes of the undertaking. Provided that the owner shall so work the railway as not to interfere with or impede the traffic upon the tramways or cause any inconvenience or injury to the passengers and servants of the Company and the traffic on the tramways shall take precedence of the traffic on the railway and no vehicle upon the railway shall be permitted to approach within ten yards of any crossing at any time when any vehicle on the tramways is approaching the crossing and is within thirty yards thereof and no vehicle shall be allowed to stand upon the railway on or within ten yards of the crossing and notice of the approach of the vehicles on the railway shall be given by sounding a bell whistle or other apparatus :

- (2) If any difference arises under this section between the Company and the owner that difference shall be referred to arbitration.

10. The Company may with the consent of the owner of any building attach to that building such brackets wires and apparatus as may be required for the working of the tramways or any tramways run over worked and used by the Company by mechanical power :

Attachment
of brackets
to buildings.

Provided that—

- (1) Where in the opinion of the Company any consent under this section is unreasonably refused they may appeal to a petty sessional court who shall have power to allow the attachment subject to such terms as to compensation or rent or otherwise as they may think reasonable in the circumstances or to disallow the same and may determine by which of the parties the costs of the appeal are to be paid :

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(2) Any consent of an owner and any order of a petty sessional court under this section shall not have effect after that owner ceases to be in possession of the building but any attachments fixed under the provisions of this section shall not be removed until the expiration of three months after any subsequent owner shall have given to the Company notice in writing requiring the attachments to be removed. Where such notice is given the preceding provisions of this section shall apply and the petty sessional court shall have the same powers as under proviso (1) :

(3) The owner may require the Company to temporarily remove the attachments where necessary during any reconstruction or repair of the building.

For the purpose of this section any occupier of a building whose tenancy exceeds one year unexpired and in the case of any other tenancy the person receiving the rack-rent shall be deemed to be the owner.

Apparatus
used for
mechanical
power to be
deemed part
of tramway.

11. The provisions of sections 26 to 33 and 41 of the Tramways Act 1870 (except so much of section 28 as relates to the repair of the road between and on each side of the rails of a tramway) shall apply as if all posts tubes pipes wires and other apparatus used or to be used by the Company for the purposes of mechanical power were parts of a tramway.

For pro-
tection of
Handsworth
Urban Dis-
trict Council.

12. The foregoing provisions of this Act except those contained in the section of which the marginal note is "Overhang of tramway cars" shall not apply to any of the tramways which are situate within the urban district of Handsworth.

Certain pro-
visions as
to use of
mechanical
power not to
apply.

13. The provisions contained in the Schedules to the several Orders hereinafter specified and so much of the said Orders and of the Walsall and District Tramways Order 1884 and the South Staffordshire Tramways Order 1894 as relates thereto shall not apply to any of the tramways if and so long as they are worked by electrical power (that is to say) :—

The Staffordshire Tramways (Additional Powers) Order 1880—
Schedule :

The Staffordshire Tramways (Extension) Order 1882—
Schedule A. :

The Wednesbury and West Bromwich Tramways Order 1881—
Schedule A. :

The South Staffordshire Tramways Order 1881—Schedule A. : A.D. 1903.
 The Walsall and District Tramways Order 1880—Schedule A. : —
 The Walsall and District Tramways Order 1882—Schedule A. : —
 The Dudley and Tipton Tramways Order 1881—Schedule A.

14. Section 6 (For protection of Postmaster-General) of the Act of 1900 shall be and is hereby amended as follows :—

For pro-
tection of
Postmaster
General.

(A) Subsection (3) thereof shall be read as if the words “or
 “ the laying of lines crossing the lines of the Postmaster-
 “ General at right angles at the point of shortest distance
 “ and so continuing for a distance of six feet on each side
 “ of such point” were omitted and such words shall be
 deemed to be omitted from the said subsection :

(B) The following provision shall have effect in addition to
 and shall be read with the provisions contained in the
 said section :—

If any telegraphic line of the Postmaster-General situate
 within one mile of any portion of the works of the
 Company is injuriously affected and he is of opinion that
 such injurious affection is or may be due to the construction
 of the Company's works or to the working of their under-
 taking the engineer-in-chief of the Post Office or any
 person appointed in writing by him may at all times when
 electrical energy is being generated by the Company enter
 any of the Company's works for the purpose of inspecting
 the Company's plant and the working of the same and the
 Company shall in the presence of such engineer-in-chief
 or such appointed person as aforesaid make any electrical
 tests required by the Postmaster-General and shall pro-
 duce for the inspection of the Postmaster-General the
 records kept by the Company pursuant to the Board of
 Trade regulations :

(c) The said section as so amended by this Act shall extend
 and apply to any tramways leased to the Company and to
 any supply of electrical power by the Company to any local
 authority company body or person for any purpose under
 the powers of this Act.

15. Notwithstanding anything contained in section 43 of the
 Tramways Act 1870 or in any Act or Order relating to any of the
 tramways with which that section is incorporated the powers of the
 Tipton Council and the Coseley Council respectively to purchase
 the portions of the tramways within their respective districts shall

As to pur-
chase of
tramways
by local
authorities.

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Confirmation
of agreement
with Wed-
nesbury Cor-
poration.

16. The agreement dated the sixth day of July one thousand nine hundred and three made between the British Electric Traction Company Limited of the first part the Company of the second part and the mayor aldermen and burgesses of the borough of Wednesbury of the third part as set forth in the First Schedule to this Act is hereby confirmed and made binding upon the parties thereto and the powers by this Act conferred upon the Company shall be exercised within the borough of Wednesbury in accordance only with the terms of such agreement.

Confirmation
of agreement
with urban
district
council of
Handsworth.

17. The agreement dated the fifth day of June one thousand nine hundred and three and made between the urban district council of Handsworth (Staffordshire) of the first part the Company of the second part and the British Electric Traction Company Limited of the third part as set forth in the Second Schedule to this Act is hereby confirmed and made binding upon the parties thereto.

Agreements
as to pur-
chase of
tramways
by local
authorities.

18. The local authority of any district in which the tramways or any part thereof are or is situate or any of them may enter into and carry into effect agreements for or with respect to the postponement of the date at which the right of such local authority to purchase such tramway or tramways or portion of tramway or tramways shall be exercised for such periods not exceeding a period of forty-two years from the date of the agreement and on such terms and conditions as may have been or may be agreed by such local authority and where any such agreement as aforesaid has been or may be entered into by any such local authority the powers of purchase of any tramways comprised in such agreement shall be exercised only in accordance with the provisions thereof.

Local autho-
rities may
grant leases
of tramways.

19. The local authority of any district in which any of the tramways or any part thereof are or is situate may grant and the Company may accept a lease or leases of any tramway for the time being owned by such local authority and all works and conveniences connected therewith on such terms and conditions and for such period not exceeding a period of forty-two years from the date of the agreement as may be agreed between the Company and such authority and during the continuance and subject to the terms and conditions of any such lease the Company may work maintain and use the tramways thereby leased and demand take

and recover in respect thereof tolls fares and charges not exceeding the tolls fares and charges authorised to be taken thereon by any Act or Order relating to or regulating the same. A.D. 1903.

20. The Company on the one hand and any local authority company or person having statutory powers to supply or use electrical energy on the other hand may enter into and carry into effect agreements for or with respect to all or any of the following purposes and all matters incidental thereto (that is to say):— Agreements with local authorities as to supply of electric power.

- (1) The supply to the Company by any such local authority company body or person of electrical energy for working any of such tramways whether such tramways are or are not partly situate beyond the district of such authority :
- (2) The supply to any such local authority company body or person by the Company of electrical power for any purpose for which such authority company body or person are for the time being authorised to supply or use the same :
- (3) The payments to be made or other considerations to be given in respect of any such supply of energy.

21. Where any question is to be referred to or determined by arbitration under this Act or under the provisions of the Tramways Act 1870 incorporated with this Act that question shall be referred to the Board of Trade or if the Board of Trade shall think fit to an engineer or other fit person appointed by the Board and for the purpose of the determination of any such question either by the Board or by a person appointed by them and of the determination of any other matter under this Act by the said Board the Board of Trade Arbitration Act 1874 and the Arbitration Act 1889 or any Act or rules whereby the latter Act has been or may be modified or superseded shall apply to every such arbitration. Arbitration.

22. With respect to notices and to the delivery thereof by or to the Company the following provisions shall have effect (that is to say) :— Form and delivery of notices.

- (1) Every notice shall be in writing and if given by the Company or by any local authority shall be signed by their chairman secretary or clerk :
- (2) Any notice to be delivered by or to the Company to or by any local authority or other body or any company may be delivered by being left at the principal office of such authority body or company or at the registered office of

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the Company (as the case may be) or by being sent by post addressed to their respective clerk or secretary at such principal office or registered office.

Act to be
registered.

23. The Company shall forward to the Registrar of Joint Stock Companies a printed copy of this Act and it shall be recorded by him and if such copy is not forwarded within three months after the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of the three months during which the copy is omitted to be forwarded and every director and manager of the Company who knowingly and wilfully authorises or permits such default shall incur a like penalty and every penalty under this Act shall be recoverable summarily There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies Act 1862 on registration of any documents other than a memorandum of association.

Provision
as to general
Tramway
Acts.

24. Nothing in this Act contained shall exempt the Company or the tramways of the Company from the provisions of any general Act relating to tramways passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum fares rates or charges authorised to be taken in respect of the tramways.

Costs of Act.

25. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

The SCHEDULES referred to in the foregoing Act. A.D. 1903.

FIRST SCHEDULE.

ARTICLES OF AGREEMENT made the sixth day of July one thousand nine hundred and three between the BRITISH ELECTRIC TRACTION COMPANY LIMITED a company incorporated under the Companies Acts 1862 to 1890 whose registered office is at Donington House Norfolk Street Strand in the county of London (hereinafter referred to as "the B. E. T. Company") of the first part the SOUTH STAFFORDSHIRE TRAMWAYS (LESSEE) COMPANY LIMITED a company incorporated under the Companies Acts 1862 to 1890 whose registered office is at Donington House Norfolk Street Strand aforesaid (hereinafter referred to as "the Lessee Company") of the second part and the MAYOR ALDERMEN AND BURGESSES OF THE BOROUGH OF WEDNESBURY (hereinafter referred to as "the Corporation") of the third part.

WHEREAS the South Staffordshire Tramways Company (hereinafter referred to as "the Tramways Company") are the owners of the tramways within the said borough constructed under the powers of the Staffordshire Tramways Order 1879 the South Staffordshire Tramways Order 1881 the Wednesbury and West Bromwich Tramways Order 1881 the Staffordshire Tramways (Extension) Order 1882 the Walsall and District Tramways Act 1882 the Walsall and District Tramways Act 1884 and the South Staffordshire Tramways Act 1889 or some or one of such Orders or Acts :

And whereas by an indenture of lease dated the twenty-fifth day of April nineteen hundred and made between the Tramways Company of the first part the Lessee Company of the second part and the B. E. T. Company Limited of the third part the Tramways Company demised to the Lessee Company the whole of the tramways of the Tramways Company as therein mentioned subject to the rights of the local authorities to purchase the same in accordance with the provisions of the Tramways Act 1870 or by private contract with the consent of the Lessee Company :

And whereas the Corporation by virtue and in exercise of the powers conferred upon them by the Tramways Act 1870 or of any other power enabling them in that behalf intend to exercise their statutory powers of purchasing so much of the tramway undertaking of the Tramways Company as is situate within the borough of Wednesbury :

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Now it is hereby mutually agreed between the parties hereto as follows:—

1. In the event of the Corporation purchasing from the Tramways Company the portions of the tramways of the Tramways Company within the borough of Wednesbury and the undertaking relating thereto (hereinafter referred to as "the Wednesbury tramways") either as and when the right of the Corporation to purchase the same respectively shall arise under the provisions of the Tramways Act 1870 section 43 (or by a simultaneous purchase of the whole of such tramways at a price approved by the Lessee Company under section 44 of the said Act or under the provisions of the South Staffordshire Tramways Act 1900) the Corporation shall upon completion of each and every such purchase (if more than one) and subject to the consent and approval of the Board of Trade grant to the Lessee Company and the Lessee Company shall accept from the Corporation a lease of the portion of the Wednesbury tramways then purchased or the whole thereof as the case may be (hereinafter referred to as "the demised tramways") for the term of thirty years from the date of the purchase such lease to contain all such clauses and provisions as are usual in leases of tramways and as may be necessary or proper to insure the continuous and efficient working by the Lessee Company of the demised tramways and to embody and give effect to the respective provisions of this clause and the succeeding clause hereof. The said lease shall also contain (1) a proviso for re-entry by the Corporation in case the rent thereby reserved shall remain unpaid for a period of one calendar month after the day appointed for payment of the same and of service of notice on the Lessee Company requiring payment thereof or in case the Lessee Company their successors or assigns shall (save for the purposes of reconstruction) go into liquidation or subject to the provisions hereinafter contained shall fail to properly work the said tramways or any part thereof or properly regularly and continuously work the same respectively so as to give a connection with the tramways in the boroughs of Walsall and West Bromwich and in the districts of Darlaston and Tipton or fail to comply with any of the requirements of the Provisional Orders or Acts in relation to the demised tramways or with any of the clauses terms or conditions of the said lease and (2) clauses providing—

- (A) That the Lessee Company their successors or assigns shall not assign or underlet without the approval of the Board of Trade and the consent of the Corporation which consent is not to be unreasonably withheld;
- (B) That the Lessee Company shall run such services and adopt such motive power as the Corporation may from time to time reasonably require;
- (C) That provision shall be made for running artisan carriages;
- (D) That the Lessee Company shall observe and perform all duties and obligations imposed by any of the Acts or Orders relating to the demised tramways and indemnify the Corporation against all claims and demands by reason of any such duties or obligations not being

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duly performed or observed (with a proviso that the Corporation shall have served on the Lessee Company a notice in writing referring to this provision specifying the rent unpaid or the covenant condition or agreement broken and requiring the rent to be paid or the breach to be remedied and compensation in money for the breach and the Lessee Company shall have failed within a reasonable time thereafter to pay the rent remedy the breach if capable of remedy or make reasonable compensation in money);

- (E) That no poles shall be erected in the middle of any roadway except with the consent of the Corporation but the refusal to consent to be final and not subject to review;
- (F) That if any pole after it has been erected shall in the opinion of the Corporation or their borough surveyor be an obstruction or impediment to any works of the Corporation or to the use of the roads or streets the Corporation shall be at liberty to require such pole to be removed a reasonable distance and to be placed in such a position as the Corporation may approve or require;
- (G) That the poles shall be painted for the height of six feet from the surface of the ground once every year and for the remainder of their height once in every two years with good oil paint of a colour or colours to be approved of by the Corporation or their borough surveyor for the time being and such poles shall not be used for the purpose of displaying advertisements;
- (H) That where for the purpose of erecting any pole it is found by the Company to be necessary to remove any existing public lamp such public lamp shall be moved only by and with the consent of the Corporation at the cost of the Company;
- (I) That the Company shall at their own expense from one hour after sunset until the carriages or cars shall cease running at night light with an electric lamp the terminus of their tramways at or near "The White Horse" at Lower High Street Wednesbury and the Company shall at their own expense during the before-mentioned time light with an electric lamp the pole which has been placed in the roadway at the junction of the Market Place known as the Five Ways and now constructed as a street refuge Such lamps shall be supplied direct from the feeder wires so that in case of a breakage of the trolley wire such lamps will not be extinguished Provided always that this clause as to lighting shall apply only if and so long as the Company shall be permitted by the local authorities to run an overhead feeder wire properly insulated;
- (K) That the Corporation shall if they think proper be at liberty to affix and maintain a suitable bracket to any pole or poles for the purpose of supporting any street gas lamp or to use the said poles for the purpose of carrying wires for electric lighting purposes and may affix electric lighting lamps to any of such poles Provided always that the Company's electric system shall not be thereby interfered

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with and that the said poles shall not be prejudicially weakened or damaged ;

- (L) That the trolley wire shall be so attached that in case of breakage the wire shall not run back but be securely held at each support ;
- (M) That a lightning arrester shall be provided on every motor car and shall be so placed that when the switch is off the arrester shall still be in connection with line or trolley Every arrester shall be out of the reach of the passengers ;
- (N) That the carriages or cars to be used on the said tramway within the borough of Wednesbury shall be of such width construction form and dimensions as shall be reasonably approved by the Corporation certified under the hand of their town clerk Every such carriage or car shall be fitted with a signal bell so arranged that the driver can ring it with his feet ;
- (O) That the carriages or cars shall be lighted by electricity when running on the tramways from one hour after sunset to one hour before sunrise In erecting all poles placing the feeder wires conducting its traffic and in all its operations the Company shall interfere as little as possible with the traffic in the public streets and shall except in the case of the work of reconstruction and re-equipment mentioned in clause 5 of this agreement within forty-eight hours make good the carriage way of any street or road which may have been disturbed and the kerbstone footpath or pavement thereof and shall repair and maintain any such carriage way kerbstone footpath or pavement which may have been disturbed for a period of six calendar months from the date of such disturbance In case of default the Corporation shall be at liberty to carry out the necessary works at the cost of the Company and the Company shall pay to the Corporation the amount of such cost within one calendar month after receiving particulars thereof ;
- (P) That before commencing to break up any street or footpath for the purpose of erecting any pole or laying any wire or other appliance the Company shall give three clear days' notice to the borough surveyor of the said borough for the time being specifying the work proposed to be done and if required by the borough surveyor furnish a plan of the same ;
- (Q) That all feeder wires which it may be necessary for the Company to use shall be placed underground unless and except where the Corporation shall give their consent to the contrary and shall be laid in such manner and in such position and direction as efficiently to protect passengers and the public from contact therewith ;
- (R) That if in fixing any pole or laying any feeder wire underground or in carrying out any other works by the Company it shall be necessary to alter any sewer drain or gas main or service pipe the necessary work shall be done by the Company properly to the satisfaction of the borough surveyor ;

- (s) That the Company shall not use salt for clearing snow from the rails or track without the approval of the borough surveyor; A.D. 1903.
- (t) That in working their lines by electric power the Company shall take all reasonable practicable means for preventing sparking;
- (u) That the Corporation may appoint an inspector to see that all the work which may be done in pursuance of this agreement in any street or road within the said borough is done properly with power for him to reject any work which is done improperly;
- (v) That all the provisions contained in the Tramways Act 1870 the Walsall and District Tramways Order 1882 the Staffordshire Tramways Extension Order 1882 and the South Staffordshire Tramways Act 1889 except as in this agreement modified amended or altered shall extend and apply to the poles wires apparatus and appliances to be erected or used by the Company in working their lines by electrical power as if the same formed part of the tramways of the Company;
- (w) That if any of the erections apparatus or articles fixed or set up by the Company under the authority of these presents shall be found faulty defective or out of proper order condition or repair the Company will within one month after notice from the Corporation requiring them so to do amend and make good the same; and
- (x) That running powers over the lines within the said borough shall not be given by the Lessee Company to any other local authority tramway or other company or person without the consent in writing of the Corporation under the hand of their town clerk but such consent shall not be unreasonably withheld Any dispute difference or question as to the form or contents of the said lease shall be determined by arbitration under the arbitration clause hereinafter contained Provided that the leases subsequent to the first lease shall mutatis mutandis be in the same form as the first lease.

2. In consideration of the grant by the Corporation to the Lessee Company of the said lease the B. E. T. Company shall at their own expense give to the Corporation (1) a proper and sufficient indemnity against all obligations and liabilities of the South Staffordshire Tramways Company (if any) which may be outstanding and unsatisfied at the date of the completion of the purchase of the said tramways by the Corporation and which by virtue of section 44 of the Tramways Act 1870 shall or may attach to the Corporation as the purchasers of the tramways within the said borough and (2) shall guarantee the due performance by the Lessee Company of their obligations under the said lease.

3. The Lessee Company shall pay to the Corporation a rent for the demised tramways equivalent to such annual sums as will enable the Corporation to pay the interest upon the purchase money from time to time required to be borrowed by the Corporation (the application for the amounts required to be borrowed being made in the first instance to the Public Works Loan Commissioners) for the purchase of the various portions of the Wednesbury tramways (including any electrical equipment thereof) from the

A.D. 1903. Tramways Company and to provide a sinking fund for redeeming the loan in a period of thirty years and such rent shall be payable (freed and discharged from all rates taxes assessments and outgoings whatsoever other than land-lord's property tax) by equal half-yearly payments on the first day of January and the first day of July in each year If the depot and the offices of the Tramways Company and the site of the same situate at King's Hill in the said borough and the carriages cars locomotives and engines used by the Tramways Company and the tools loose plant and materials in and about the said depôt are purchased by the Corporation from the Tramways Company at a price approved by the Lessee Company the Lessee Company shall re-purchase the same from the Corporation within sixty days at the same price paid by the Corporation therefor.

4. The Lessee Company shall also pay to the Corporation half-yearly within one calendar month of each of the said half-yearly days by way of additional rent a sum equal to the amount which shall have been expended by the Corporation during the half-year ending such half-yearly day in repairing and maintaining the demised tramways and the road upon which the demised tramways are laid between the rails and on the outside of such rails to the extent of the outer margin of the granite setts on the outside of each of the rails as heretofore paved and maintained by the South Staffordshire Tramways Company but in any event not to be less than eighteen inches of the outer margin of the granite setts such amount to be recoverable as rent in arrear and to be ascertained and certified by the borough surveyor for the time being of the said borough and in case of any dispute respecting the amount so certified or the necessity for such repair or maintenance or otherwise the same shall be determined under the arbitration clause hereinafter contained.

5. The Lessee Company shall forthwith upon the completion of the purchase by the Corporation of any portion of the Wednesbury tramways now worked by steam traction commence and within two years thereafter complete to the reasonable satisfaction of the Corporation the reconstruction and re-equipment for electric traction such portion of the Wednesbury tramways unless prevented by strikes or combination of workmen Such reconstruction re-equipment and other works shall be superintended by a clerk of the works who shall be engaged by the Corporation and his services shall be paid for by the Lessee Company at such rate as the Corporation shall reasonably determine In the event of the said reconstruction and re-equipment being incompleated at the expiration of the said period of two years the Lessee Company shall pay to the Corporation the sum of ten pounds by way of liquidated damages for each month's default from and after the said period of two years and until the said reconstruction and re-equipment and other works shall be completed to the reasonable satisfaction of the Corporation The Lessee Company shall repair and make good all roads and footpaths vested in the Corporation which shall be broken up or otherwise interfered with in installing erecting and maintaining the electrical equipment of the

demised tramways This agreement shall be deemed to be a consent to the A.D. 1903.
Wednesbury tramways being adapted for and worked by electrical power.

6. The Lessee Company shall at their own expense during the continuance of the lease maintain the poles trolley wires cables and other electrical equipments placed in the streets in an efficient condition for the safe and efficient working of the line and to the reasonable satisfaction of the Corporation.

7. The Lessee Company shall give the system of halfpenny stages a fair trial and shall if commercially practicable adopt the system of halfpenny fares for the demised tramways and shall not without the consent of the Corporation introduce the system of fixed stopping places.

8. Subject to the provisions of the Tramways Order and of any regulations made under the Tramways Order by the Board of Trade and of any byelaws for the time being in force with respect to the tramways the Lessee Company will permit the Corporation at such times and in such manner as they think fit between the hours of twelve at night and five in the morning but so as not to unduly impede obstruct or interfere with the ordinary traffic on the tramways and after giving due notice to the Lessee Company of their intention so to do to use any portion of the tramways by carriages moved by horses or otherwise for the removal of night soil and house refuse and for the conveyance of scavenging stuff road metal and other materials required by the works of the Corporation free of all tolls and charges in respect of such use and that the Corporation shall indemnify the lessees against any damage done to the lessees by such use Provided that the Corporation shall not save by agreement with the Lessee Company be entitled to use or employ for such purposes any carriages trucks horses electric current or other motive power or officers and servants of the Lessee Company.

9. Neither of the parties hereto of the first two parts shall during the continuance of the lease construct or lay down any new tramway within the said borough whether by way of extension of existing tramways or otherwise without the consent in writing of the Corporation under the hand of their town clerk If the Corporation shall during the continuance of the lease construct or lay down any new tramway in the said borough the Lessee Company shall have an option exerciseable for a period of six months from the date of the certificate of the Board of Trade that such new tramway is fit for public traffic of a lease from the Corporation of such tramway upon such terms and subject to such conditions as failing agreement shall be determined by arbitration in manner provided by the arbitration clause hereinafter contained.

10. The Lessee Company shall pay to the Corporation on the grant of the said lease the sum of seven hundred pounds in respect of Parliamentary agents counsel's fees and law charges of and incidental to the opposition by the Corporation of the South Staffordshire Tramways Act 1899 of the South Staffordshire Tramways Act 1900 and of and incidental to the preparation

A.D. 1903. — and execution of this agreement for the purchase of the undertaking and the preparation and execution of the said lease to be granted under clause 1 hereof and a counterpart thereof and the expenses of borrowing the said purchase money shall be borne and paid by the Lessee Company at the time of the execution of the said lease and counterpart.

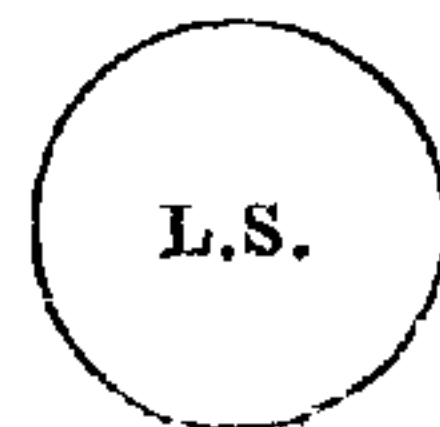
11. If the Corporation shall be unable to effect a simultaneous purchase of the whole of the tramways within the borough of Wednesbury the Lessee Company will accept from the Corporation a lease of such portions of the said tramways as shall be acquired by the Corporation under and by virtue of the several Tramways Acts and Orders first hereinbefore recited and as and when the same shall be acquired by the Corporation on the terms and conditions herein contained and to be contained in the said lease mutatis mutandis.

12. Each of the parties hereto shall use their best endeavours to obtain the consent and approval of the Board of Trade to the said lease to be granted under the provisions of clause 1 hereof.

13. Upon the expiration of any lease the Corporation shall pay a sum to be ascertained by arbitration but not exceeding ten thousand pounds for the purchase of the equipment (other than track and rolling stock) of the lines provided that such equipment of the lines for motive power be kept up to date during the continuance of the lease to the end of the term including best modern tramway appliances and provided that the sum of three hundred pounds per annum be paid to the Corporation by the Company (in addition to the rent hereinbefore agreed to be paid by the Company) for the first nine years of the said lease and one hundred and fifty pounds per annum (in addition to the said rent aforesaid) for the remaining twenty-one years of the said lease.

14. Any and every dispute difference or question which shall at any time arise between the parties hereto or their respective successors or assigns or any of them touching the construction meaning or effect of these presents or any clause or thing herein contained or the rights or obligations of the said parties respectively or their respective successors or assigns or any of them under these presents or otherwise howsoever in relation to these presents or as to anything in any way arising under this agreement shall be referred to a single arbitrator to be appointed by the Board of Trade and the provisions of the Arbitration Act 1889 shall apply to such arbitration In witness whereof the parties hereto have caused their respective common seals to be hereunto affixed the day and year first above written.

The common seal of the mayor aldermen and
burgesses of the borough of Wednesbury was
hereunto affixed in the presence of—



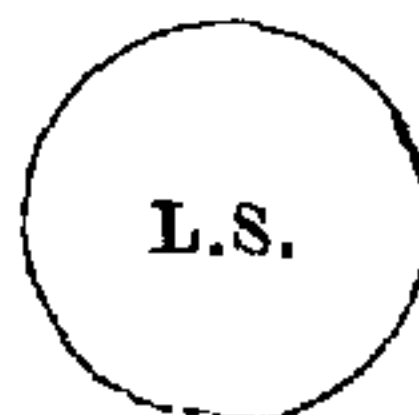
THO. JONES
Town Clerk.

The common seal of the South Staffordshire
Tramways (Lessee) Company Limited was
hereunto affixed pursuant to a resolution of
the board of directors in the presence of—

JAS. A. LYCETT }
E. GARCKE } Directors.

FREDERICK COX

Secretary.



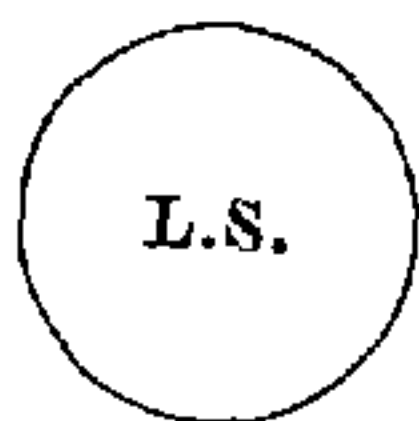
A.D. 1903.

The common seal of the British Electric Traction
Company Limited was hereunto affixed pur-
suant to a resolution of the board of directors
in the presence of—

JOHN S. RAWORTH }
WM. L. MADGEN } Directors.

CHAS. H. DADE

Secretary.



SECOND SCHEDULE.

MEMORANDUM OF AGREEMENT between the URBAN DISTRICT COUNCIL OF HANDSWORTH (Staffordshire) the SOUTH STAF- FORDSHIRE TRAMWAYS (LESSEE) COMPANY LIMITED and the BRITISH ELECTRIC TRACTION COMPANY LIMITED.

1. The Handsworth Urban District Council (hereinafter called "the council") to proceed with all due dispatch to acquire the South Staffordshire Tramways Company's tramway undertaking in Handsworth.

2. As soon as may be after the said undertaking has been purchased by the council the council to proceed to reconstruct and equip the same for electric traction on the overhead system (but not with centre poles) and when completed the South Staffordshire Tramways (Lessee) Company (hereinafter called "the Lessee Company") to take the same on lease and work the same with rolling stock to be provided by them and to be reasonably approved by the council regard being had to the fact that the said tramways form part of a larger system subject to the terms of the lease hereinafter mentioned.

3. The lease shall commence as from the date of completion of the purchase and expire on the thirtieth day of June one thousand nine hundred and eleven.

4. The annual rent to be sixty-five pounds and six pounds ten shillings per cent. upon the council's capital outlay including cost of purchase and reconstruction and electrical equipment of the tramways and all other works

A.D. 1903. — carried out by the council reasonably connected therewith excluding the cost of the generating station and the plant therein but including the expenditure incurred in connection with such purchase reconstruction and equipment.

5. The council to have the option of supplying to the Lessee Company all electrical energy required for the purposes of the tramways on the same terms (save as to the minimum quantity of energy to be taken by the Company) as the corporation of West Bromwich are to supply electricity to the Lessee Company for their lines in West Bromwich as provided by the agreement dated the thirty-first day of December one thousand nine hundred and made between the said Corporation of the first part the British Electric Traction Company of the second part and the Lessee Company of the third part In lieu of the minimum supply provided for by the said West Bromwich agreement the minimum quantity of energy to be taken by the Company to be settled by agreement or failing agreement determined by arbitration as provided by this agreement This option to be exerciseable at any time after twelve months' notice given to the Lessee Company The Lessee Company to provide the electricity if required by them before the option is exercised or to obtain it elsewhere.

6. The British Electric Traction Company to be parties to the lease and to guarantee the performance of the Lessee Company's covenants and obligations The other terms of the lease to be similar to those contained in the said agreement of the thirty-first day of December one thousand nine hundred so far as the same are consistent with the provisions of this agreement and if any question arise as to any of such terms or as to any other provisions to be inserted in the lease the same to be settled by an arbitrator to be appointed by the Board of Trade.

7. The reasonable costs incurred by the council in opposing the Bill and also the costs charges and expenses relating to the preparation and completion of this agreement and the lease to the Lessee Company in accordance with Schedule I. Part 2 of the Solicitors' Remuneration Order to be paid by the Lessee Company.

8. This agreement to be scheduled to and confirmed by the South Staffordshire Tramways Bill now pending in Parliament but the agreement is subject to such alteration as Parliament may think fit to make therein and if the committee on the Bill make any material alteration in the agreement it shall be competent to any of the parties thereto to withdraw the same.

In witness whereof the parties hereto have hereunto caused their common seals to be affixed this fifth day of June one thousand nine hundred and three.

The common seal of the Handsworth Urban District
Council was hereunto affixed in the presence of—



H. WARD

Clerk to the Council.

[3 EDW. 7.]

South Staffordshire Tramways [Ch. ccxxxi.]
Act, 1903.

The common seal of the South Staffordshire Tram-
ways (Lessee) Company Limited was hereunto
affixed pursuant to a resolution of the board of
directors in the presence of—



A.D. 1903.
—

J. ERNEST SPENCER }
S. R. BLUNDSTONE } Directors.

W. FREDERICK COX

Secretary.

The common seal of the British Electric Traction
Company Limited was hereunto affixed pursuant
to a resolution of the board of directors in the
presence of—



C. SHIRREFF HILTON }
WILLIAM L. MADGEN } Directors.

CHAS. H. DADE

Secretary.

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T. DIGBY PIGOTT, Esq., C.B., the King's Printer of Acts of Parliament.

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